

Calendar Line # 4
Case Name Maria Duran vs Paul Chavez et al
Case No. 25CV478033
Motion to Set Aside/ Vacate Default Judgment <u>I. BACKGROUND</u> On October 24, 2025, Plaintiff Maria Duran (“Duran”) filed a Complaint against Defendant Paul R. Chavez - Chavez Law Firm (“Chavez”) alleging (1) breach of contract – legal service agreement, (2) breach of contract – personal loan in the amount of \$71,500.00, and (3) fraud, misrepresentation, and rule 9.20 violations. (Complaint, p. 1-2). On January 12, 2026, a basic default was entered against Defendant Chavez in the amount of \$65,200.00. Before the Court is Defendant’s motion to set aside and vacate the default judgment as handwritten on the caption (the footnote erroneously states “INSERT DOCUMENT TITLE (e.g. MOTION TO STRIKE).” The two page motion was filed on January 27, 2026. The motion was not accompanied by a proof of service, notice, or memorandum of points and authorities. On September 4, 2026, Plaintiff Duran filed an Opposition to Defendant’s motion to set aside the default. The Court has carefully reviewed the following: Defendant’s motion (totaling 2 pages); Plaintiff’s Opposition (totaling 16 pages); and the pleadings. <u>II. PROCEDURAL VIOALTIONS</u> The Court notes that even if it overlooks the wrong footnote of the present motion, which the Court understands is Defendant Chavez’s motion to set aside/vacate the default judgment, there are substantial procedural violations. First, there is no noticed motion as required under California Code of Civil Procedure section 1005(a) and Rules of Court, rule, 3.1112(a). Even if the Court takes the caption that lists the motion date as September 24, 2026 at 9:00 a.m. in Department 1, there is no proof of service, which is required under Code of Civil Procedure section 1005, which provides in pertinent part that, “[u]nless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing.” Further, the motion is not accompanied by a required memorandum of points and authorities, as required under Rules of Court, rule 3.1113. The body of the motion does not include a separate Declaration, but provides a signed statement from Defendant Chavez stating that that due to facing major health issues, including hospitalizations for congestive heart failure and Pagett’s disease, he was unable to file an answer or respond to the Complaint. (Defendant’s motion, p. 1). No exhibits were produced. <u>III. ANALYSIS</u> Due to the procedural violations for failure to: provide proper notice, provide proof of service, and include a memorandum of points and authorities, the Court cannot reach the merits of the motion. (Rules of Court, rule 3.1112-3.1113; Code of Civil Procedure section 1005). Plaintiff opposes the motion on the ground she did not receive proper notice. <u>IV. CONCLUSION</u> Based on the foregoing, the motion is DENIED. The Court will prepare the formal Order.

Calendar Lines # 5-7
Case Name Luele Kifle vs El Camino Hospital et al
Case No. 25CV482233
Demurrer (Line # 5); Motion Strike (Line # 6); Joinder (Line # 7) Before the court are three motions: (1) defendant Johnson Kai Kwan, M.D.’s demurrer to plaintiff’s First Amended Complaint; (2) defendant Johnson Kai Kwan, M.D.’s motion to strike portions of plaintiff’s First Amended Complaint; and (3) defendants El Camino Hospital and El Camino Healthcare District’s joinder in demurrer of Johnson Kai Kwan, M.D. to Plaintiff’s First Amended Complaint. The Background portion below in section I applies to all three motions. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. BACKGROUND On December 17, 2025, plaintiff Luele Kifle (“Kifle”), a self-represented litigant¹, commenced this action by filing a 26-page complaint against defendants El Camino Hospital (“Hospital”), El Camino Healthcare District (“District”), and Johnson Kai Kwan, M.D. (erroneously sued as Johnson Kai Yi Kwan; hereafter, “Dr. Kwan”) asserting causes of action for: (1) Professional Negligence (Medical Malpractice) (2) Falsification of Medical Records/ Fraudulent Misrepresentation (3) General Negligence (4) Negligent Hiring, Training, Supervision, and Retention (5) Rehabilitation Act §504 (29 U.S.C. §794) (6) California Disabled Persons Act (Civ. Code §§54 – 55.32) (7) Unruh Civil Rights Act (Civ. Code §§51 et. seq.) (8) California Government Code §11135 (9) Title VI - Civil Rights Act of 1964 (42 U.S.C. §2000d) (10) Intentional Discrimination Based on Race and Disability (11) Violation of Patients’ Rights (22 CCR §70707; Health & Safety Code) (12) ADA Title III – Public Accommodations (42 U.S.C. §§12182, 12205) (13) Negligent Infliction of Emotional Distress (14) Intentional Infliction of Emotional Distress (15) Unfair Competition Law (Bus. & Prof. Code §17200) (16) Punitive Damages In the original complaint, plaintiff Kifle alleged that he lives with facioscapulohumeral muscular dystrophy (“FSHD”), a permanent neuromuscular disability requiring periodic urgent and emergency care. (Complaint, page 3, lines 20 – 21). On June 1, 2024, plaintiff Kifle’s father drove plaintiff Kifle to defendant Hospital for excruciating neuropathic pain radiating from his left shoulder through the arm/ hand. (Complaint, page 4, lines 5 – 6). According to plaintiff Kifle, defendant Hospital and defendant Dr. Kwan failed to perform a meaningful medical and neurological

¹ Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (*Lombardi v. Citizens Nat’l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).